

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2024CUBC020830: KASHIA NELSON vs FCA US LLC
08/20/2026 in Department 44
Motion for Attorney Fees/Costs

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant’s Motion for Attorneys Fees and Costs Pursuant to Code of Civil Procedure 473(b)

Tentative Ruling:

Defendant FCA US LLC’s Motion for Attorney Fees and Costs Pursuant to Code Civ. Proc. § 473(b) is GRANTED.

On July 1, 2026, the Court granted Plaintiff Kashia Nelson mandatory relief under Code Civ. Proc. § 473(b) based upon the sworn affidavit of fault of Plaintiff’s counsel, Larry Chae. Section 473(b) therefore requires the Court to direct the attorney whose fault caused the dismissal to pay the opposing party reasonable compensatory legal fees and costs.

The Court finds FCA’s requested legal fees of \$3,560 reasonable and compensatory. The award consists of \$2,480 incurred in opposing Plaintiff’s motion to set aside the judgment and \$1,080 incurred in preparing and arguing this motion.

Accordingly, Larry Chae is ORDERED to pay Defendant FCA US LLC \$3,560 in reasonable compensatory legal fees pursuant to Code Civ. Proc. § 473(b).

To the extent FCA requests that the award also be imposed directly against Strategic Legal Practices, APC, the request is denied because FCA has not identified an independent basis for imposing the mandatory Code Civ. Proc. § 473(b) payment obligation upon the law firm in addition to the attorney whose affidavit of fault supported the relief.

Defendant FCA US LLC is to give notice.

I. Background

A. Factual Background

Plaintiff Kashia Nelson alleges that on December 5, 2018, she entered into a warranty contract concerning a certified pre-owned 2015 Jeep Grand Cherokee manufactured and/or distributed by Defendant FCA US LLC. Plaintiff alleges the vehicle developed defects and nonconformities covered by warranty and asserts claims under the Song-Beverly Consumer Warranty Act.

B. Procedural Background

Plaintiff filed this action on February 14, 2024. FCA answered on March 21, 2024.

On February 17, 2026, the parties appeared for trial call and the matter was placed on a trailing calendar subject to 48-hour recall. On February 24, the Court notified counsel that trial would commence February 26. Plaintiff's counsel Larry Chae did not appear. The Court dismissed the action without prejudice pursuant to Code Civ. Proc. § 581 and directed FCA to submit a proposed judgment. Judgment was subsequently entered in FCA's favor.

On April 21, 2026, Plaintiff moved under Code Civ. Proc. § 473(b) to set aside the judgment and dismissal. Chae submitted a sworn declaration accepting responsibility for the missed appearance. He explained that he was engaged in another trial, had placed his phone on "do not disturb," and did not receive a missed-call notification from the application through which his office line was forwarded. He expressly stated that his failure to appear resulted from his "mistake, inadvertence, surprise, or neglect."

FCA opposed. Its opposition argued, among other things, that Chae knew this matter remained on 48-hour recall and that his failure to monitor the case, respond to communications, or otherwise ascertain whether trial had been called constituted inexcusable neglect. FCA further argued that Chae had failed to check the Court's calendar or docket during the relevant period and had not responded to an email from defense counsel advising him on February 24 that trial had been set.

On July 1, 2026, the Court found that Chae's conduct constituted inexcusable neglect and declined discretionary relief. The Court nevertheless granted mandatory relief under Code Civ. Proc. § 473(b), finding that Chae's sworn affidavit of fault established that the dismissal resulted

from his neglect. The Court vacated the judgment, restored the action, reset trial for September 14, 2026, and reserved August 20, 2026 for FCA's motion for attorney fees under Code Civ. Proc. § 473(b).

FCA filed the present motion on July 29, 2026, requesting \$3,560 in compensatory legal fees. No opposition or reply has been filed.

II. Preliminary Matters

A. Service and Notice

FCA filed and served the motion by email on July 29, 2026. The hearing is set for August 20, 2026.

Code Civ. Proc. § 1005(b) generally requires moving and supporting papers to be served and filed at least 16 court days before the hearing unless the Court orders a shorter period. Electronic service ordinarily extends a statutory notice period by two court days. (Code Civ. Proc. § 1010.6(a)(3)(B).) Thus, although the July 29 filing was exactly 16 court days before the August 20 hearing, electronic service appears to have been two court days late.

The defect does not require denial of the motion. Rule 3.1300(d) permits the Court, in its discretion, to refuse to consider untimely papers; conversely, the Court may elect to consider them. Here, Plaintiff had actual notice since July 1 that FCA's fee motion would be heard August 20, 2026, the service deficiency amounts to two court days, and neither Plaintiff nor Chae filed an opposition, objected to notice, or requested a continuance. Under these circumstances, the Court may exercise its discretion to consider the motion notwithstanding the technical notice defect.

III. Discussion

A. Legal Standard: Mandatory Compensatory Fees Under Code Civ. Proc. § 473(b)

Code Civ. Proc. § 473(b) provides that whenever relief from a default, default judgment, or dismissal is granted based upon an attorney's affidavit of fault, the Court shall direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or the opposing party. (Code Civ. Proc. § 473(b).)

Thus, once mandatory relief has been granted on an attorney affidavit of fault, an award of reasonable compensatory legal fees and costs is mandatory rather than discretionary. (*Metropolitan Service Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1488.) The fees are compensatory and are imposed upon the attorney whose fault necessitated the relief.

B. FCA Is Entitled to Reasonable Compensatory Fees Because the Court Granted Relief Based on Chae's Affidavit of Fault

The predicate for an award under Code Civ. Proc. § 473(b) has already been conclusively established by the Court's July 1 ruling. The Court expressly granted Plaintiff mandatory relief because Chae's neglect caused the dismissal, while simultaneously finding his conduct inexcusable for purposes of discretionary relief. Accordingly, Code Civ. Proc. § 473(b) requires Chae to compensate FCA for reasonable legal fees and costs caused by his neglect.

FCA seeks \$3,560. Felton Newell declares that the amount consists of:

- \$2,080 for 10.4 hours spent by law clerk Lea Washington preparing FCA's opposition and supporting papers to the motion to set aside, at \$200 per hour;
- \$400 for one hour of Newell's time preparing for, traveling to, and appearing at the July 1 hearing, at \$400 per hour;
- \$680 for two hours spent by associate Wade Cicierski preparing the present motion and supporting documents, at \$340 per hour; and
- \$400 for one anticipated hour of Newell's time in connection with oral argument on the present motion.

The total is \$3,560.

The requested amount is reasonable. FCA's opposition to the set-aside motion required factual analysis of the trial-call chronology and legal analysis of both the discretionary and mandatory provisions of Code Civ. Proc. § 473(b). The opposition consisted of approximately ten substantive pages and addressed mistake, excusable neglect, inadvertence, diligence, and the distinction between discretionary and mandatory relief. FCA ultimately succeeded in persuading the Court that Chae's neglect was inexcusable, although the Court was required to grant mandatory relief because of his affidavit of fault.

The 10.4 hours of law-clerk time, one hour of attorney time for the July 1 hearing, and three total attorney hours associated with preparing and arguing the present fee motion are not excessive on this record. The hourly rates (\$200 for the law clerk, \$340 for an associate, and \$400 for a managing partner) are also facially reasonable. No opposition challenges either the hours or the rates.

Although the motion is styled as seeking "fees and costs," the declaration identifies no separate out-of-pocket costs; the entire \$3,560 request consists of legal fees.

The motion is therefore be granted in the amount of \$3,560.

FCA requests that the Court order both Larry Chae and Strategic Legal Practices, APC to pay the award. Code Civ. Proc. § 473(b), however, directs the Court to order "the attorney" whose

affidavit of fault supported the relief to pay the compensatory fees and costs. Here, the affidavit of fault was submitted by Chae personally. FCA identifies no separate statutory or other authority establishing that Strategic Legal Practices, APC should independently or jointly bear the mandatory Code Civ. Proc. § 473(b) obligation. The award is made against Larry Chae.